

26NWCV00839 26NWCV00839

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26NWCV00839 Hearing Date: September 14, 2026 Dept: D

VELOCITY INVESTMENTS LLC V.

YUMI HERNANDEZ, ET AL.

CASE NO.: 26NWCV00401

HEARING: 09/14/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Defendant Yumi Hernandez's Motion to Compel Initial Responses to Request for Identification and Production of Documents and Tangible Things, Set No. One and Form Interrogatories Set No. One, With Request for Monetary Sanctions is GRANTED.

Defendant Yumi Hernandez's request for sanctions is GRANTED in the reduced amount of \$900.00.

Plaintiff Velocity Investments, LLC is ordered to submit verified responses, without objections, within 30 days of this order.

Sanctions are to be paid by Plaintiff Velocity Investments, LLC within 30 days of notice of this order.

Moving party to give notice.

Defendant Yumi Hernandez (Hernandez)

moves for an order compelling Plaintiff Velocity Investments, LLC's (Plaintiff) responses to Form Interrogatories—General, Set One, and Requests for Identification and Production of Documents and Tangible Things, Set One.

Defendant also seeks monetary sanctions in the amount of \$2,625.00.

Legal Standard

Requests for Production of Documents

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents is directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).)

The party also waives the right to make any objections, including ones based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).)

Interrogatories

When a party fails to serve a timely response to interrogatories, the party propounding the interrogatories may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subd. (b).) A party who fails to provide a timely response waives any objection, including one based on privilege or work product. (Id., § 2030.290, subd. (a).)

Sanctions

If the motion to compel is granted and the moving party properly requests monetary sanctions, the court “shall” impose sanctions against the party to whom the discovery was directed, unless it finds that the sanctioned party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories]; 2031.300, subd. (c) [demands for inspection].)

Analysis

Requests

for Production of Documents

On May 18, 2026, Hernandez served upon Plaintiff, Defendant's Form Interrogatories—General, Set One, and Requests for Identification and Production of Documents and Tangible Things, Set One. (Declaration of Sam Dehbozorgi ("Dehbozorgi Decl."), ¶ 3, Ex. A.) On July 2, 2026, Hernandez's counsel attempted to meet and confer with Plaintiff regarding Plaintiff's due discovery responses. (Id. at ¶ 5, Ex. B.) As of August 10, 2026, Plaintiff has failed to respond to the discovery requests. (Id. at ¶ 6.) No opposition has been filed arguing otherwise.

The Court finds that Hernandez has demonstrated that form interrogatories and requests for production were propounded on Plaintiff and that Plaintiff has not provided any responses.

Accordingly, the Court GRANTS the request to compel initial responses, without objections, to those discovery requests.

Sanctions

Hernandez also requests monetary sanctions against Plaintiff and its counsel in the amount of \$2,625.00, presumably based on approximately 4.28 hours anticipated spending on this motion at the billing rate of \$600 per hour, including reviewing the opposition and preparing the reply brief, plus a \$60.00 filing fee. (Dehbozorgi Decl., ¶¶ 7-9.) Counsel declares that he is a Supervising Partner at his firm, The Fullman Firm. (Id. at ¶ 7.)

The Court finds that sanctions are warranted due to Plaintiff's failure to serve responses.

However, because no opposition or reply was filed, the time anticipated for drafting a reply was not necessary. In addition, a billing rate

of \$600.00 per hour for this routine unopposed motion is excessive. Therefore, the Court finds that 2.0 hours of attorney time for preparing this motion and appearing at the hearing at an hourly rate of \$450.00 is reasonable.

Accordingly, the Court GRANTS monetary sanctions in the reduced amount of \$900.00.

Conclusion

Defendant Yumi Hernandez's Motion to Compel Initial Responses to Request for Identification and Production of Documents and Tangible Things, Set No. One and Form Interrogatories Set No. One, With Request for Monetary Sanctions is GRANTED.

Defendant Yumi Hernandez's request for sanctions is GRANTED in the reduced amount of \$900.00.

Plaintiff Velocity Investments, LLC is ordered to submit verified responses, without objections, within 30 days of this order.

Sanctions are to be paid by Plaintiff Velocity Investments, LLC within 30 days of notice of this order.